



CHAPTER xlv.

An Act to confirm a Provisional Order of the Minister of Health relating to the urban district of Milford Haven. A.D. 1934.
[12th July 1934.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Milford Haven) Act 1934. Short title.

[Ch. xlv.] *Ministry of Health* [24 & 25 GEO. 5.]
Provisional Order Confirmation (Milford Haven)
Act, 1934.

A.D. 1934.

SCHEDULE.

*Milford
Haven
Order.*

URBAN DISTRICT OF MILFORD HAVEN.

*Provisional order partially repealing and amending a
local Act and a provisional order.*

WHEREAS under the provisions of certain local Acts and provisional orders the urban district council of Milford Haven as successors to the Milford Improvement Commissioners carry on a water undertaking and supply water within certain limits;

And whereas by section 33 of the Milford Improvement Act 1857 as amended by Article III of the provisional order dated the 21st day of February eighteen hundred and eighty-five confirmed by the Local Government Board's Provisional Orders Confirmation Act 1885 the rates which the council are authorised to charge for the supply of water for domestic purposes are prescribed;

And whereas the council have applied to the Minister of Health for the issue of a provisional order partially to repeal and amend the local Act and the provisional order in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Milford Haven Order 1934 and shall come into operation on the date of the Act of Parliament confirming it.

Interpreta-
tion.

2.—(1) This order shall be read as one with the Milford Improvement Act 1857.

(2) In this order unless the context otherwise requires—

“ the Act of 1857 ” means the Milford Improvement Act 1857;

“ the council ” means the council of the urban district of Milford Haven;

“ the order of 1885 ” means the provisional order dated the 21st day of February eighteen hundred and eighty-five which was confirmed by the Local Government Board's Provisional Orders Confirmation Act 1885.

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3.—(1) As from the quarter day next following the date of operation of this order the council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate per annum on the net annual value of the house or part of a house supplied not exceeding the rates specified in the schedule to this order :

A.D. 1934.

—
*Milford
Haven
Order.*

Charges for
supply of
water.

Provided that the council shall not be required to afford a supply of water for domestic purposes to any premises at a less rate than fifteen shillings per annum :

Provided also that the council shall in no case be entitled to charge at a higher rate in respect of any dwelling-house or part of a dwelling-house included in any division of the schedule to this order than that at which they would be entitled to charge if such dwelling-house or part of a dwelling-house were of sufficient net annual value to bring it within the next higher division of the schedule.

(2) The net annual value of any such house or part of a house as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues :

Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the council may charge in respect of every fixed bath beyond the first (for which no additional charge shall be made) a sum not exceeding five shillings per annum The additional sums which may be charged under this subsection shall be paid quarterly in advance and be recoverable in all respects with and in the same manner as the water rate.

4. If there be any watercloset or bath in any manufactory or place of business the council may charge such sum as they deem reasonable for a supply of water thereto.

Charges for
supply of water
to waterclosets
and fixed baths
in manufactories
&c.

5. As from the quarter day next following the date of operation of this order sections thirty-three thirty-nine and forty of the Act of 1857 and Articles III and IV of the order of 1885 shall be repealed.

Repeals.

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Provisional Order Confirmation (Milford Haven)
Act, 1934.

A.D. 1934.

SCHEDULE.

*Milford
Haven
Order.*

RATES FOR THE SUPPLY OF WATER FOR DOMESTIC PURPOSES.

Net Annual Value of
Houses or Premises.

Charge per annum.

Not exceeding £10	-	Not exceeding 12 per centum on the net annual value.
Exceeding £10 but not exceeding £30.		Not exceeding 10 per centum on the net annual value.
Exceeding £30	- -	Not exceeding 8 per centum on the net annual value.

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